

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
DANIEL JOHNSON

Plaintiffs,

SUMMONS

-against-

Index No:

THE CITY OF NEW YORK, POLICE OFFICER FRITZ; and
POLICE OFFICERS 1-10 (said names being fictitious who
falsely arrested and imprisoned plaintiffs)Defendants.
-----X

Plaintiff designates Queens County as the place of trial.

The basis of the venue is situs

The place of arrest is Queens, New York

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if the summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
March 1, 2016FRANZBLAUDRATCH, PC
*Attorney for Plaintiff*By: BRIAN M. DRATCH, Esq.
233 Broadway, Suite 1800
New York, New York 10279
(212) 571-1808

Defendants' Address:
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
DANIEL JOHNSON

Plaintiffs,

COMPLAINT

-against-

Index No:

THE CITY OF NEW YORK; POLICE OFFICER FRITZ
and POLICE OFFICERS 1-10 (said names being
fictitious who falsely arrested and
imprisoned plaintiff)

Defendants.
-----X

Plaintiffs, by his attorneys, FRANZBLAU DRATCH, alleges the
following, upon information and belief, as his Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendants
violations of plaintiffs constitutional rights on May 20, 2015
2. Plaintiffs seeks declaratory relief pursuant CPLR 3001
and 28 U.S.C. § 2201, compensatory and punitive damages for
violation of plaintiff's civil rights pursuant to 42 U.S.C.
§§1981, 1983, 1985 and 1986 and an award of costs, disbursements
and attorneys fees under 42 U.S.C. §1988.

JURISDICTION

3. This action is predicated upon violations of
plaintiffs' Civil Rights protected under the United States
Constitution inclusive of the Fourth and Fourteenth Amendments to

the United States Constitution as well as the New York State Constitution actionable pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

VENUE

4. That Venue for this action is placed in the County of the Queens because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3)

PARTIES

5. Plaintiff is and continues to be residents of the State of New York;

6. Defendant, the CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

7. Defendant, the CITY OF NEW YORK, has established and maintains the New York City Police Department which is an agency of the defendant, CITY OF NEW YORK;

8. At all times relevant, defendants the CITY OF NEW YORK employed the individual Police Officers including Police Officer Fritz and other officers who are unknown to plaintiff.

9. At all times relevant, defendant Officer Fritz and other Police Officers were a duly appointed Police Officers of the CITY OF NEW YORK;

10. At all times relevant, the individual police officers including defendant Fritz were acting under the color of State

Law;

11. At all times relevant, the individual police officers were acting both in their individual and official capacity as employees of defendant the CITY OF NEW YORK;

12. Notwithstanding the unconstitutional and unlawful conduct, the actions of the Police Officers were taken in the course of his duties and were incidental to their otherwise lawful functions as agents, servants and employees of the CITY OF NEW YORK;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

13. On May 20, 2015, plaintiffs was arrested by the defendants, without warning and without probable cause and placed was falsely imprisoned on Riker's Island.

15. On August 19, 2015, all charges against plaintiff was dismissed.

16. As a result of each of the defendants conduct Plaintiffs suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced events;

**FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM HARM
UNDER THE FOURTH, AND FOURTEENTH AMENDMENTS
DUE TO FALSE ARREST, FALSE IMPRISONMENT AND**

17. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

18. As a result of the aforescribed actions, including intentional infliction of emotional harm upon the plaintiff, that defendants deprived plaintiffs, of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendment and the New York State Constitution;

19. As a result of the aforescribed actions, these defendants individually deprived plaintiffs of the right to be free from harm, free from false imprisonment and false arrest secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments and the New York State Constitution;

20. As a result of the aforescribed actions, including the physical injuries that defendants caused, defendants individually deprived plaintiffs of Equal Protection under the Law secured by the Constitution and laws of the United States and the Fourteenth Amendment and the New York State Constitution;

21. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

22. The aforescribed acts of these defendants were willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

23. As a result of the foregoing, plaintiff has suffered

damages

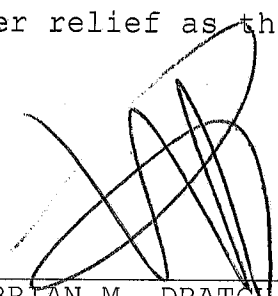
WHEREFORE, plaintiff requests judgment against the defendants as follows:

(A) compensatory damages in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

(B) As to the first cause of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton, willful and malicious character of the conduct complained of herein;

(C) As to the first cause of action, an award of attorney's fees as provided under 42 U.S.C. §1988; and

(D) Such other and further relief as this Court may deem just, proper and equitable
Dated: March 1, 2016
New York, New York



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